

Some concerns about records handling



From Brian C <[redacted]>
To Ed Barberini <ebarberini@cityofsanmateo.org>, Bahareh Abdollahi <babdollahi@cityofsanmateo.org>
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Dear Chief Barberini and Assistant City Attorney Abdollahi,

I'm following up on our past discussions regarding the city's usage of Flock camera data. I really appreciate the actions your department has taken, including drastically reducing the sharing scope to a level similar to what we discussed in our June meeting. However, in the months since we last spoke, I've found something that I believe needs your personal attention: several of the files the city has released under PRA W012541-041426 appear to have been edited after they were exported from the Flock platform and before they were posted to the portal, with no redaction, exemption, or change ever declared. Records held by multiple other agencies on the network do not match what San Mateo has presented as authentic. I'm asking for a written response by August 31, 2026; the details, and a straightforward path to resolving this, are below.

Please know that the concern I highlight below is a data management and records documentation issue, not directly related to the usage of Flock; Flock's networked nature has, however, allowed an unprecedented level of scrutiny that would not be possible in a non-networked system. Moving forward, it may be worth reviewing how these records are stored and handled between the time they are created and the time they are submitted to the portal, so that files presented as official unmodified records remain exactly that, and that any redactions or withholdings are made in a manner consistent with the relevant laws.

Let's make sure we are being as responsible as possible to maintain the trust I know you have all worked so hard to achieve with San Mateo.

Your staff have been working on request W012541-041426 for four months now, releasing the Flock search-audit logs on a rolling basis in two-week increments – equivalent requests with other agencies generally take days instead of months. I have found the rate of release to be quite interesting, since there has not been a single disclosure of withholding or redaction or exemption of individual or bulk records which would justify a very metered release of files.

One of the many dangers of a widely networked surveillance system is that the confidentiality of its records extends no further than the practices of the most transparent agency on the network. Historically, I have expressed concern that this networked nature risks impacting the privacy of the general population; in this case, however, it is the Department itself that is impacted. Each and every search on the Flock network leaves a trail across each of the networks it reaches. As a consequence, San Mateo's searches appear in the audit logs of many other agencies, and I have had the opportunity to review quite a few of those agencies' logs. There appear to be a number of very concerning discrepancies. In multiple cases, the other agencies' records agree with one another, but not with the versions that San Mateo has produced.

As you are aware, the Public Records Act requires that records be made "promptly available" and that "an exact copy shall be provided unless impracticable to do so" (Gov. Code § 7922.530(a)); that when part of a record is exempt, the exempt portion be deleted and "any reasonably segregable portion" released (§ 7922.525(b)); and that an agency that withholds any record, or any part of one, say so and justify the withholding in writing (§§ 7922.000, 7922.540). A deletion the requester is never told about is not a redaction; it is a withholding the agency never acknowledged making. Government Code § 6200 separately addresses the alteration and falsification of records by those entrusted with their custody. My PRA request anticipated the redaction question directly: it asked for the existing platform export, not a custom report, and offered plainly marked field-level redaction, using the platform's native user identifier masking (***), as the appropriate treatment for any field the Department considered exempt.

Consider this hypothetical example: suppose a monthly audit file were exported from the Flock platform on May 21 at 5:14 p.m. Suppose that thirteen days later, someone opened that export in Adobe Acrobat, found a row whose reason field read "Ivne" — an innocuous typo, not exempt material in need of redaction — and retyped it to read "Investigation," and then that person saved the file at 12:56 p.m. on June 3. Additionally, suppose that same file were then posted to the PRA portal that same afternoon, presented as an official responsive record, with no alterations indicated or disclosed. These events could easily come across as being problematic. In other hypothetical examples, a case number silently replaced by the word "investigation" would be something else entirely: not a deletion but an alteration, leaving the reader believing an officer stated a generic justification when the platform's own record says otherwise. One could construct other hypothetical examples of what an altered response might look like.

A records response that claims no exemptions or withholdings should be identical to the original file as exported from the platform. So, with all of the above in mind, is it possible that the Department has mistakenly uploaded incorrect versions of responsive records to the portal — working copies, perhaps — in place of the exports I requested? Could you please review the production and let me know whether anything needs to be revised? Specifically:

- * Please verify each file posted for W012541-041426 and state, in writing, whether it is the unmodified export as the platform produced it.

- * Please post a corrected copy of any file that is not the unmodified platform export. If the Department contends that any change to any file is a redaction, please mark it as such in the corrected copy and cite the exemption relied upon. Commonly, departments use '***' or 'REDACTED' or a black bar to indicate such redactions, and they generally refrain from altering records in a non-transparent way.

- * Please preserve, rather than delete or overwrite, the files as originally posted, the exports as the platform produced them, and any intermediate versions, so that any discrepancy can be resolved against the originals.

- * Since no release to date has declared a redaction, please explain what the weeks-long review preceding each purportedly unaltered release consists of, or ideally, complete the production without further metering out of records.

- * Please describe the procedures that the department takes to ensure that files posted in response to records requests are identical to the exports as the platform produced them, apart from plainly marked and cited redactions. If the Department adopts a written procedure, please include a copy in your response.

To be clear, I am not asking the Department to characterize how any potential changes occurred, only to state what its intended response is. Because these items concern files already produced rather than a new request for records, please respond by letter rather than by portal message. If I do not receive a written correction by August 31, 2026, I will take each file currently posted in the portal to be the Department's intended and final version of each record released to date, and any difference between a posted file and the platform's export to be an unmarked alteration for which no exemption is claimed.

The Public Records Act exists to build trust between agencies and the communities they serve by allowing the public to verify that it is not being misled. I want to be able to rely on what the PRA portal publishes as an accurate record of what the platform produced. A written response to item 1 and corrected files under item 2 would go a long way towards ensuring that this important trust is maintained.

Best regards,

Brian